

	Defense counsel agreed that the mediation would occur prior to the MSJ hearing. But this is not supported by counsels' emails. The Court does not find that Plaintiffs' counsel's failure to calendar the MSJ hearing was the result of excusable mistake or neglect. "In determining whether the attorney's mistake or inadvertence was excusable, 'the court inquires whether a reasonably prudent person under the same or similar circumstances might have made the same error.'" (Zamora v. Clayborn Contracting Group, Inc. (2002) 28 Cal.4th 249, 258 [citing Bettencourt v. Los Rios Community College Dist. (1986) 42 Cal.3d 270, 276].) "Conduct falling below the professional standard of care, such as failure to timely object or to properly advance an argument, is not therefore excusable." (Id.) Plaintiffs' counsel initially declares that "I neglected to calendar those new dates due to the news about my brother-in-law plus the ongoing distractions resulting from moving my parents into an assisted living facility." (Elliott Decl. ¶ 9.) On 12/17/25, Plaintiffs' counsel (as well as his co-counsel, Mr. Cascali) were copied on an email from a paralegal in his own firm stating that the new date of the MSJ hearing was 1/16/26, attaching the stipulation waiting signature from the Court. (Elliott Decl., Ex. 7.) A reasonably prudent person under similar (albeit sympathetic) circumstances would not have made the same error given that (1) a stipulation was drafted in part by Plaintiffs' counsel regarding the subject summary judgment hearing date, (2) counsel was copied on
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		the email from his own office that included the new hearing date in the body of the email, and (3) the trial date had been set on 2/23/26. The trial date is especially significant here. Code Civ. Proc., § 437c(a)(3) states that a MSJ “shall be heard no later than 30 days before the date of trial...” Counsel does not dispute that he was aware of and in possession of Defendants’ MSJ. Knowing that trial was scheduled for February 23rd, a reasonable attorney would expect that the hearing date for the MSJ (which had already been filed) would be no later than January 23rd, and thus would both keep himself apprised of the Court’s docket and start preparing an opposition. Based on the foregoing, the motion is DENIED. Defendants shall give notice.
52	<i>Mona Nemat et al. v. Lucas Corselli et al.</i>	Plaintiffs Mona Nemat and Ali Nemat’s Motion for Leave to File a Third Amended Complaint is GRANTED. The Court finds Plaintiffs should be permitted to file the amended pleading. (Code Civ. Proc., § 464.) Plaintiffs seek leave to file a public nuisance claim against Defendant Wong. Plaintiffs claim they discovered facts to support the claim following discovery, and that the proposed amendments are necessary and proper and relate back to the same facts alleged in the operative Second Amended Complaint. The motion is accompanied by a supporting declaration and a copy of the proposed pleading. No one has filed an opposition to the motion. Plaintiffs shall file the Third Amended Complaint within 15 days of this ruling and shall give notice of the ruling.